AS TO THE ADMISSIBILITY OF

Application No. 18828/91
by Michael PORTER-HARRIS
against the United Kingdom

The European Commission of Human Rights (First Chamber) sitting in private on 1 July 1992, the following members being present:

MM. F. ERMACORA, Acting President of the First Chamber
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
Sir Basil HALL
Mr. C.L. ROZAKIS
Mrs. J. LIDDY
MM. M. PELLONPÄÄ
B. MARXER

Mr. M. de SALVIA, Secretary to the First Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 20 June 1991 by Michael Porter-Harris against the United Kingdom and registered on 20 September 1991 under file No. 18828/91;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a British citizen born in 1960 and resident in Hartwell. He is represented before the Commission by Peter Ashman, a barrister practising in London. The facts as submitted by the applicant may be summarised as follows.

The applicant was sentenced on 30 June 1978 to a term of discretionary life imprisonment for offences relating to possession of a firearm with intent to endanger life. He was described by the court as being of a "psychopathic disorder" with an "explosive temper".

The applicant was released on licence on 6 July 1990. Conditions are attached to the licence which is of indefinite duration, inter alia, that he may only reside and work where approved by his probation officer and that he may not leave the country without the approval of his probation officer.

COMPLAINTS

The applicant complains that the licence lasts for life and its continued existence and the conditions imposed under it are unreviewable. He complains that these restrictions interfere with his

rights under Articles 5, 8 and 11 of the Convention.

THE LAW

1. The applicant compains that the life licence restricts his freedom contrary to Article 5 para. 1 (Art. 5-1) of the Convention, which provides in its first sentence :

> "Everyone has the right to liberty and security of person."

The Commission recalls that under the terms of his licence the applicant must obtain the approval of his probation officer as regards his place of residence and before leaving the country. The applicant has made no complaint that this approval has been refused or that he has in fact been prevented from going where he wishes. In these circumstances, the Commission finds that the restrictions imposed in fact on the applicant are not of such a nature or degree as to constitute a deprivation of liberty within the meaning of Article 5 (Art. 5) of the Convention.

It follows that this complaint is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicant also complains that the life licence interferes with his rights under Articles 8 and 11 (Art. 8, 11) of the Convention, which provide, inter alia:

Article 8 (Art. 8):

> "(1) Everyone has the right to respect for his private and family life, his home and his correspondence.
>
> (2) There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others."

Article 11 (Art. 11):

> "(1) Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> (2) No restrictions shall be place on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others..."

The Commission recalls that the licence imposes on the applicant a number of conditions which potentially restrict his movements. The Commission notes however that the applicant has not complained of any specific prejudicial effect caused by the operation of the life licence in his case. He has not indicated that his probation officer has unreasonably or arbitrarily supervised the conditions imposed under the life licence. The Commission considers that, assuming the existence of the life licence constitutes an interference under the above

provisions, such interference may be justified for the purpose of the prevention of crime and disorder. The measure has also not been shown to be disproportionate bearing in mind that the applicant was sentenced to life imprisonment for serious offences and considered to be psychopathic.

The Commission accordingly finds that there is no indication of a violation of Articles 8 and 11 (Art. 8, 11) of the Convention on the facts of this case.

It follows that these complaints are manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission unanimously

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the First Chamber Acting President of the First Chamber

(M. de SALVIA) (F. ERMACORA)